

SS029337 SS029337

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Case Number: SS029337 Hearing Date: September 10, 2026 Dept: N

TENTATIVE RULING

Respondents Paul Kambur and Kambur Construction Group, Inc.'s Motion to Compel Arbitration is DENIED.

Respondents Paul Kambur and Kambur Construction Group, Inc. to give notice.

REASONING

Applicable Law

"If the award is vacated, the court may order a rehearing before new arbitrators. If the award is vacated on the grounds set forth in paragraph (4) or (5) of subdivision (a) of Section 1286.2, the court with the consent of the parties to the court proceeding may order a rehearing before the original arbitrators. [¶] If the arbitration agreement requires that the award be made within a specified period of time, the rehearing may nevertheless be held and the award made within an equal period of time beginning with the date of the order for rehearing but only if the court determines that the purpose of the time limit agreed upon by the parties to the arbitration agreement will not be frustrated by the application of this provision." (Code of Civil Procedure, §1287.)

Analysis

This is Respondents Paul Kambur and Kambur Construction Group, Inc. ("Respondents") second attempt to move the Court for an order compelling Petitioners Zalman Nemtzov and Zalman N., Inc. ("Petitioners") to arbitrate the issues remaining between Petitioners and Respondents after vacatur of the previously issued arbitration award. Respondents move pursuant to Code of Civil Procedure section 1287, which they previously raised as a ground to compel arbitration on reply on the prior motion.

Respondents make the same arguments raised in the prior motion. Respondents argue there is no effective award in the arbitration because the Court vacated the prior award, that they are now entitled to an award of attorneys' fees and costs incurred in the arbitration and those fees can only be awarded in arbitration. Respondents assert the Court of Appeals found Petitioners were precluded from recovery from Respondents because ZNI was unlicensed and KCG was entitled to disgorgement under 7031(b) and the disgorgement claim was only raised in arbitration and can only be resolved in arbitration.

Respondents argue that on remand the trial court is limited by the terms of the remittitur from doing anything contrary to the Court of Appeal's mandate and the Court of Appeal's mandate did not address Respondents' affirmative claims in arbitration. Respondents ask that the Court exercise its discretion and order a rehearing in arbitration of outstanding issues remaining between the parties as the Court is not precluded from ordering further arbitration on the remaining claims per Code of Civil Procedure section 1287.

Petitioner argues the motion must be denied for multiple reasons, Code of Civil Procedure section 1287 is discretionary, and the Court already stated in connection with the prior motion to compel arbitration that it declined to exercise that discretion. Petitioner contends this motion is also an improper motion for reconsideration unsupported by any newly discovered fact, changed circumstance or intervening law. Petitioner argues the Court has complied with the Court of Appeal's mandate and nothing further should be ordered as even if it reached the merits of the request under Code of Civil Procedure section 1287, every consideration weighs against reordering arbitration.

Respondents assert this is not a request for reconsideration of the prior motion to compel, which was brought pursuant to Code of Civil Procedure section 1281.2 because this motion is brought pursuant to Code of Civil Procedure section 1287. Respondents are the prevailing party in the arbitration and they are unable to obtain relief as prevailing party in any forum other than arbitration. Respondents ask that the Court compel arbitration of those remaining issues per Code of Civil Procedure section 1287.

As the Court previously stated, Respondents argue that reversal of the award in their favor necessarily means that they are now the prevailing parties on those claims, but the appellate court's opinion did not so state. The opinion simply stated that Petitioners could not probably be awarded the damages they sought, the arbitration award should be vacated, and Respondents could recover their costs on appeal. The Court of Appeals could have remanded and ordered further arbitration but it did not.

Respondents cite Code of Civil Procedure section 1287, but they previously cited that authority in the reply of their prior motion to compel arbitration. The Court addressed Respondents' request in its prior order. As previously stated, section 1287 allows, but does not require, the Court to order a rehearing. The Court declines to order arbitration pursuant to Code of Civil Procedure section 1287 because it believes it would exceed the appellate court's direction. The appellate court simply vacated the prior award with no further instruction.

Respondents' instant motion is an improper motion for reconsideration of the Court's June 23, 2026 order denying the prior motion to compel arbitration. No new facts, circumstances or law are raised in the motion, which seeks the identical relief as the prior motion based on the same authority. Respondents argue it only cited section 1287 on reply. That is irrelevant. Section 1287 was raised, even if on reply, and the substance of the request was addressed by the Court.

Accordingly, Respondents Paul Kambur and Kambur Construction Group, Inc.'s Motion to Compel Arbitration of Remaining Issues After Vacatur of Arbitration Award is DENIED.